

The Indian Majority Act, 1875

Source: <https://indiankanoon.org/doc/80664820/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

489

]

Union of India - Act

The Indian Majority Act, 1875

UNION OF INDIA

India

The Indian Majority Act, 1875

Act 9 of 1875

Published on 2 March 1875

Commenced on 2 March 1875

[This is the version of this document from 2 March 1875.]

[Note: The original publication document is not available and this content could not be verified.]

The Indian Majority Act, 1875

Act

No. 9 of 1875

[As on 1957]

1876.

An Act to amend the law respecting the age of majority.

[2nd March, 1875]

Preamble. - Whereas, in the case of persons domiciled in [India]

[Substituted by Act 3 of 1951, Section 3 and Schedule, for "Part A States and Part C States"]

it is expedient to prolong the period of nonage, and to attain more uniformity and certainty respecting the age of majority than now exists; It is hereby enacted as follows:-

1.

Short title.

- This Act may be called the Indian Majority Act, 1875.

Local extent. - [It extends to the whole of India [except the State of Jammu and Kashmir]

[Substituted by the A.O. 1950 for the original para.]

];

Commencement and operation. - and it shall come into force and have effect only on the expiration of three months from the passing thereof.

2.

Savings.

- Nothing herein contained shall affect-

(a)

the capacity of any person to act in the following matters (namely),-marriage, dower, divorce and adoption;

(b)

the religion or religious rites and usages of any class of [citizens of India]

[Substituted by the A.O. 1950 for "His Majesty's subjects in India".]

; or

(c)

the capacity of any person who before this Act comes into force has attained majority under the law applicable to him.

3.

Age of majority of persons domiciled in India.

- Subject as aforesaid, [every minor of whose person or property, or both, a guardian, other than a guardian for a suit within the meaning of Chapter XXXI of the [Code of Civil Procedure]

[Substituted by Act 8 of 1890, Section 52, for "every minor of whose person or property a guardian has been or shall be appointed by any Court of Justice, and every minor under the jurisdiction of any Court of Wards".]

, has been or shall be appointed or declared by any Court of Justice before the minor has attained the age of eighteen years, and every minor of whose property the superintendence has been or shall be assumed by any Court of Wards before the minor has attained that age] shall, notwithstanding anything contained in the [Indian Succession Act

[See now the Indian Succession Act, 1925 (39 of 1925

)]

or in any other enactment, be deemed to have attained his majority when he shall have completed his age of twenty-one years and not before.

Subject as aforesaid, every other person domiciled in [India]

[Substituted by Act 3 of 1951, Section 3 and Schedule, for "Part A States and Part C States"]

shall be deemed to have attained his majority when he shall have completed his age of eighteen years and not before.

4.

Age of majority how computed.

- In computing the age of any person, the day on which he was born is to be included as a whole day, and he shall be deemed to have attained majority, if he falls within the first paragraph of section 3, at the beginning of the twenty-first anniversary of that day, and if he falls within the second paragraph of section 3, at the beginning of the eighteenth anniversary of that day.

Illustrations

(a)

Z is born in [India]

[Substituted by Section 3 and Schedule, by Act 3 of 1951, for "a Part A State or a Part C State]

on the first day of January 1850, and has [an Indian domicile]

[Substituted by Section 3 and Schedule, by Act 3 of 1951, for "a domicile in a Part A State or a Part C State]

. A guardian of his person is appointed by a Court of Justice. Z attains majority at the first moment of the first day of January 1871.

(b)

Z is born in [India]

[Substituted by Section 3 and Schedule, by Act 3 of 1951, for "a Part A State or a Part C State]
on the twenty-ninth day of February 1852, and has [an Indian domicile]

[Substituted by Section 3 and Schedule, Act 3 of 1951, for "a domicile in a Part A State or a Part C State]

. A guardian of his property is appointed by a Court of Justice. Z attains majority at the first moment of the twenty-eighth day of February 1873.

(c)

Z is born on the first day of January 1850. He acquires a domicile in [India]

[Substituted by Section 3 and Schedule, by Act 3 of 1951, for " Part A State or a Part C State]

. No guardian is appointed of his person or property by any Court of Justice, nor is he under the jurisdiction of any Court of Wards. Z attains majority at the first moment of the first day of January 1868.

Related AI tags, queries and research notes

Translation